

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Mr. Carlos Giraud,

Plaintiff,

-Against-

Sergeant Denis Samuylin, NYPD 121st pct.
Officer Todd Hansen, NYPD 75th pct.
Officer Lafemina, NYPD 75th pct.

Defendants.

Amended Complaint
under
Civil Rights Act, 42 U.S.C. § 1983
Prison Complaint.

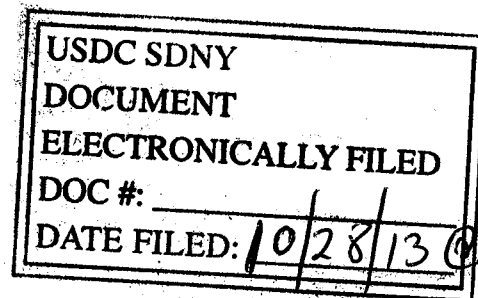
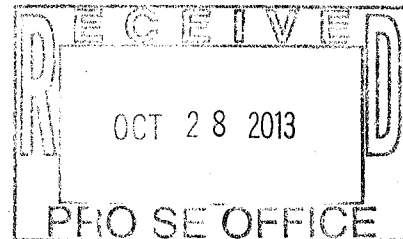
Jury Trial ☒
yes

13 CV 3418

I. Parties in this Complaint

A. Plaintiff:

Mr. Carlos Giraud
#141-12-05741
1600 Hazen Street
East Elmhurst N.Y. 11370



B. Defendants:

1. Sergeant Denis Sumuylin, Shield# 3457
New York City Police Department
121 st. pct.
970 Richman Avenue
Staten Island, N.Y. 10303
2. Officer Todd Hansen, Shield# 13329
New York City Police department
75th pct.
1000 Sutter Avenue
Brooklyn N.Y. 11208
3. Officer Lafemina, Tax # 949190
New York City Police Department
75th pct.
1000 Sutter Avenue
Brooklyn N.Y. 11208

II. Statement of Claim:

- A. It happen at 2 Fountain Avenue, Brooklyn N.Y., 2nd Floor, and 75th precinct.
- B. Inside Plaintiff's home and 75th precinct.
- C. On April 26. 2012, around 9:30 am.

D. Facts:

Please see attached Statement of Facts and Memorandum of law

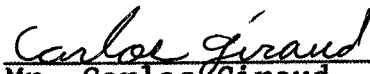
III. Injuries:

Multiple injuries, abrasions, trauma to my head, neck, ribs and my groion area, Chronic headaches, and swelling of head and legs, and constant back pain.

IV. Exhaustion of Administrative Remedies:

- A. NO
- B. NO

SOUTHERN DISTRICT OF NEW YORK.



Mr. Carlos Giraud
141-12-05741

C.NO

D.NO

E. Yes, I filed a complaint with CCRB, and recieved a response.

see Exhibit.

F. 1.NO

2.NO

G. Besides CCRB, no one else.

V. Relief:

I seek monetary damage of 10 million Dollars from each defendant that participated and helped assisted in the physical and mental abuse of me on April 26. 2012.

VI. Previous Law Suits:

A.NO

B.NO

C.NO

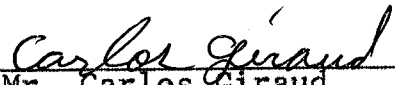
D.NO

VII. Statement of facts and Memorandum of Law stating each cause of action.

I, DECLARE UNDER THE PENALTY OF PERJURY THAT THE FOREGOING IS TRUE AND CORRECT.

Signed this 19th Day of October, 2013

Signature of Plaintiff,


Mr. Carlos Giraud
#141-12-05741
1600 Hazen street
East Elmhurst N.Y. 11370
Pro-Se

I, DECLARE UNDER THE PENALTY OF PERJURY THAT ON THE 19th DAY OF OCTOBER, 2013, I AM DELIVERING THIS AMENDED COMPLAINT TO THE PRISON AUTHORITIES TO BE MAILED TO THE PRO-SE OFFICE OF THE UNITED STATES DISTRICT COURTS,

STATEMENT OF FACTS

On April 26. 2012, while inside the confines of my home, located at 2 Fountain Avenue, 2 flr. Brooklyn.N.Y., around 9:30am, of that morning, the three (3) defendants knocked down my door without producing a legal warrant, I asked did they have a warrant to enter my house, and was told that they did, and then was assaulted by Officer Lafemina and Hansen while Sergeant Sumuylin stood and watched as the two officers handcuffed me and began assualting me by punching and kicking me. They began to administer kicks to my head, neck, ribs, groin area and my legs, then they began to punch me in the face and head area. All I could do was get in a fetal position and try to block my face and head from the blows that was coming so rapidly.

I began screaming to the Sergeant "Please stop them", but he continued to allow them to continue to assault me, until officer Hasen pulled out his weapon and pointed it at me, they Sergeant Sumuylin told him to put the gun down, and take this asshole to the station.

This was done and witnessed by three (3) people. Now, when I arrived at the police station, I told the Sergeant and officer lafemina that " I need to see a doctor" and they both threaten to really hurt me " if I ever tell anyone what was done to me, that I would end up in the hospital in worse condition then they left me. So, for the rest of the time in the 75th precinct I kept my mouth closed and prayed that they get me out of there as soon as possible. Now, the beating that they administered to me lasted about 5-7 minutes at the hands of both of the officers while the Sergeant just watched.

Each of these defendants participated in a very unnecessary and deliberate use of excessive force, unreasonable search and seizure, in what they deemed a arrest of me without a warrant, my constitutional Rights was violated on this day of April 26. 2012.

MEMORANDUM OF LAW

THE CAUSE OF ACTION THATS A
VIOLATION OF PLAINTIFF'S CONSTITUTIONAL
RIGHTS IS THE EXCESSIVE FORCE THAT WAS USED

In this litigation that before the court the defendants engaged in assaulting plaintiff on numerous occasions in what clearly was rouse to cover the extreme hostile, aggressive and brutal behavior of these officers [defendants] that was involved with brutal beating plaintiff to the point of sustaining numerous inflicted injuries by each of the officers while the Sergeant watched and only stoppped these officers when one of the officers pulled his weapon out and pointed it at me.

The brutal assault that the plaintiff sustained at the hands of these defendants was in violation of plaintiff's Fourth Amendment an the Common Law definitional claim of Assault and Battery and Excessive Force.

A police officer's use of force is excessive and therefore violates the Fourth Amendment interest "is weightier than" the counterailing govern mental interest at stake Graham v. Connor, 490 U.S. 386, 396; 109 S.ct. 1865, 104 L.ed2d 443 (1989). A police officer must have some justification for the quantum of force he/she use. Here, in this case at bar, none of the officers can justify there action in administering the brutal physical abuse that they used on April 26. 2012, at two occassions on at my home where the officers kicked, punched and beat me into submission while I begged and pleaded for the sergeant to get them to stop, and the second time was at the precinct where they assaulted me and threaten me that if I tell I would recieve a worse beating then the one that was administered.

In each of the assaults that took place, the officers assaulted plain tiff and it was done unprovokely and without a warning, no officers in his right mind would belive in the lawfullness of the actions of each of these

defendants. Plaintiff posed no immediate threat to the safety of himself or the officers, plaintiff willingly allowed the officers to handcuff him and then they started beating plaintiff about the face, neck, head and the groin area, even while plaintiff was being brutally beaten, plaintiff did not fight back, or physically do anything to these officers.

Defendant[s] may be held liable for the injuries, where an officer in its employment uses excessive force in effectuating an arrest (see Jones v. State of New York, 33 N.Y2d 275, 279-80; 307 N.E2d 236; 352 N.Y. 2d 169 [1973]; Aronld v. State of New York, 108 AD2d 1021, 1022; 486 NYS2d 94 [1985] appeal dismissed 65 NYS2d 723; 481 N.E2d 569, 492 N.Y.S2d 29 [1985]; Stein v. State of New York, 53 AD2d 988, 385 NYS2d 874 [1976]; with such a claim "analyzed under the 4th Amendment [of the Constitution] and its standards of objective reasonableness" (passino v. State of New York, 260 Ad2d 915, 916, 689 NYS2d 258 [1999] iv denied 93 NY2d 814, 719 N.E2d 923, 697 NYS2d 562[1999]).

Plaintiff will show this court that the officers/defendants used extreme excessive force in subduing and arresting him, while the existance of probable cause to effect and arrest does not bar this cause of action sounding in assault and battery based on the excessive force that was used, there must be some evidence of force used and exercised in excess of what is inherent in an arrest, which in this case at bar, plaintiff sustained multiple injuries, head, groin area, neck legs, plaintiff recieved gtrauma to all the areas above by the defendants, plaintiff had extreme numbness from the handcuffs being on so tight and long (see, Freeman v. Port Authority of New York and New Jersey, 243 AD2d 409, 410-11, 663 NYS2d 557)(1st. dept.1997).

THE CAUSE OF ACTION THATS A
VIOLATION OF PLAINTIFF'S CONSTITUTIONAL
RIGHTS IS THE FALSE ARREST THAT WAS ADMINISTERED

The law is well settled that an arrest and imprisonment are privileged where the arrest is made "pursuant to a warrant valid on its face and issued by a court having jurisdiction of the crime and person... and this is so even though the process may have been erroneously or improvidently issued (Boose v. City of Rochester, 71 AD2d 59, 66, 421 N.Y2d 740.

Where as in a action for False Arrest and Imprisonment redresses the violation of an individuals freedom of movement. It is well settled and established that a warrantless arrest is presumptively unlawful and that the defendant[s] has the burden of proving legal justification as an affirmative defense by showing that probable cause existed at the time of areest. Broughton v. State of New York, 37 NY2d 451, 335 NE2d 310, 373 NYS2d 87[1975].

In this case at bar, plaintiff was arrested after being brutally beaten by the defendant[s] without the pre-requisite probable cause needed to effectuate an arrest, and had absolutely no justification to assault plaintiff for asking to see the required warrant when officer[s] break into and or braak down your door to gain entery of your home. It is very easy to show that the defendants intended to confine plaintiff, when they entered into the home without a warrant and or probab;le causae t0o do so, then by placing plaintiff in handcuffs so tight that it stopped the blood flow into plaintiff's hands and then brutally beat plaintiff and afterwards threaten plaintiff that if he say anything that he will recieve a worst beating. All this was done without thge pre-requisite need of probable cause, plaintiff was also aware that at no time due to the restrain that the defendants place on him was he free to leave, nor vdid plaintiff consent to the confinement that resulted in the brutal physical abuse that this officers administered to plaintiff, and at no time do plaintiff think that the confinement that the defendants exercised over him was a privileged one. The defendants knew that

once the handcuffs was placed on, defendants knew that they was going to administer a beating to plaintiff under the watchful eyes of the sergeant who only told them to stop when one of the officers pulled out his service weapon and pointed it at plaintiff's head.

A claim of False Arrest resting on the Fourth Amendment Rights of an individual to be free from unreasonable search and seizures, including arrest without probable cause, is the substantially the same as a claim for False Arrest under N.Y. law (Weyant v. Okst, 101 F.3d 845, 852 [citation omitted]). Each of these officers/defendants exceeded the standard of objective reasonableness under the Fourth Amendment, Koelman v. City of New York, 36 AD3d 451, 453, 829 NYS2d 24 [1st. Dept. 2007] iv denied 8 N.Y3d 814, 870 NE2d 160, 838 NYS2d 840 [2007]; see also, Graham v. Connor, 490 US 386, 396-97 109 S.Ct. 1865, 104 L.Ed 2d 443 [1989].

THE CAUSE OF ACTION THATS A
VIOLATION OF PLAINTIFF'S CONSTITUTIONAL
RIGHTS IN THE FALSE IMPRISONMENT THAT WAS ADMINISTERED

The tort of False Arrest is essentially the same as the tort of False imprisonment (Houghtaling v. State of New York, 11 Misc. 2d 1047, 175 NYS2d 659; 1958 NY. Misc. Lexis 3141 [1958], and every false arrest is itself a False imprisonment, with the imprisonment commencing with the arrest (Balsch v. State of New York, 76 Misc. 2d 1006, 351 NYS2d 617, 1974 NY Misc. Lexis 1059 [1974]).

In the case at bar, plaintiff's false arrest and imprisonment derives from plaintiff expressing his sentiments on wanting to know why he was being handcuffed and arrested which lead to defendants assaulting plaintiff.

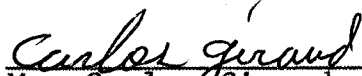
THE CAUSE OF ACTION THATS A
VIOLATION OF PLAINTIFF'S CONSTITUTIONAL
RIGHTS IN THE UNREASONABLE SEARCH AND SEIZURE THAT
WAS ADMINISTERED

The Fourth Amendment provides in relevant parts that " [t]he rights of the people to be secure in there persons, houses, papers, and effects, against unreasonable search and seizures, shall not be violated" (U.S. Const. 4th Amend.). The Fourth Amendment does not guarantee against all searches and seizures, only those that was unreasonable (see, U.S. v. Sharpe, 470 U.S. 675, 682, 105 S.ct. 1568, 84 LED2d 605)[1985]. Searches conducted outside the judicial process, without prior approval by a judge or Magistrate, few specifically established and well-delinated exceptions (see Katz v. US, 389 U.S 347, 88 S.ct 507, 19 LED2d 576)[1976][some of these exceptions include consent searches, searches for items in plain view, automobile searches searches conducted incident to a valid arrest, if no search occured the 4th is not implicated.

Here, the case at bar, plaintiff was at his house when the defendants busted in his house and handcuffed him and started physically beating him up while he was handcuffed, the beating lasted for about 5-7 minutes, defendants never produced a valid warrant and when plaintiff asked to see the warrant he was handcuffed and beaten, all the while the sergeant watched the two officers administered this physical abuse to plaintiff.

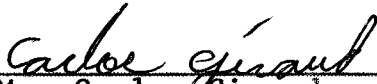
Each of the Defendant violated my rights to be free from unreasonable search and seizures and then using it as a rouse to brutally abuse of plaintiff.

Dated October 19. 2013
East Elmhurst N.Y.


Mr. Carlos Giraud
#141-12-05741
1600 Hazen Street
East Elmhurst N.Y. 11370

I, DECLARE UNDER THE PENALTY OF PERJURY THAT THE FOREGOING IS TRUE AND CORRECT

Signed this 19th day of October, 2013



Mr. Carlos Giraud
#141-12-05741

MR. CARLOS GIRAUD
141-12-05741
1600 Hazen Street
East Elmhurst, NY 11370

SM_{P3}
ONY

PRO-SEC OFF
United States DE
Southern District of
500 Pearl Street
New York, NY

PRO-SEC OFF
10/28/13

